TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: July 20, 2026
Time: 2:00 PM

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1	ADM Works v. Ahmed	Cont. to 10/19
2	Dahn, Trustee v. Uponor, Inc.	O/C
3	Flannigan v. Baron	The motion by plaintiff Terrence Flannigan for reconsideration of the Court's April 20, 2026 order granting the Special Motion to Strike pursuant to Code of Civil Procedure §425.16 brought by Defendant Brian Baron is **DENIED**, as set forth herein. Initially, the motion is defective as it lacks a proper proof of service. There is no proof of service attached to the motion at ROA 159. While there is a document titled "proof of service" at ROA 155, that document does not describe the documents which were served. Further, ROA 155 shows service was made by U.S. Mail on a secretary at Jennifer Saunders' office as opposed to being sent to Ms. Saunders. Further, the plaintiff failed to submit the required affidavit in support of the motion. Code of Civil Procedure §1008(a) requires that "The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (See also, *Branner v. Regents of Univ. of*

		California (2009) 175 Cal. App. 4th 1043, 1048 - "motion was invalid when filed because it failed to comply with the statutory procedural requirement that the motion contain the requisite affidavit.") In addition, the motion itself does not identify new facts or evidence. Plaintiff's assertions that the Court made an error in granting the motion does not constitute "new or different facts, circumstances, or law" as required by Code of Civil Procedure §1008. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) Accordingly, the motion is **DENIED.** Clerk shall give notice.
4	Berndt v. Iron 8 Properties	Plaintiff Christopher Berndt's unopposed Motion to Consolidate OCSC 26-01547394 with OCSC 26-01561206 is **GRANTED.** The Court finds the cases have common issues of law and fact. The Court orders a complete consolidation. OCSC 26-01547394 is lead case. All future filings for OCSC 26-1561206 shall be filed in the lead case. All filings must comply California Rule of Court Rule 3.350(d). Plaintiff's counsel is ordered to file a notice including a copy of this ruling in OCSC 26-1561206 within 5 court days and to file and serve notice that this has been done. Plaintiff's counsel shall give notice of the Court's ruling on this Motion.
5	Konzelman v. Cushman & Wakefield U.S. Inc. et al	Before the Court at present is the Demurrer filed on 4/27/26 by Defendants Cushman & Wakefield U.S., Inc. and Lorraine Drown ("Defendants"), directed to the Eleventh and Twelfth Causes of Action in the First Amended Complaint ("FAC") filed on 4/1/26 by Plaintiff Regina Frances Konzelman ("Plaintiff"). The Demurrer is **OVERRULED** as to the Eleventh and Twelfth Causes of Action. For the Eleventh Cause of Action, the FAC asserts that Plaintiff experienced retaliation for making complaints to management about her working conditions. (FAC ¶¶ 13, 15, 90-92.) Internal complaints about working conditions have been deemed sufficient to state this cause of action. (*Zirpel v. Alki David Productions, Inc.* (2023) 93 Cal.App.5th 563, 566, 578.) This claim is thus adequately pled to withstand demurrer. For the Twelfth Cause of Action, the FAC alleges that Defendants "falsely informed Plaintiff's subsequent employer that Plaintiff had work performance issues and that was the reason she was terminated from Cushman & Wakefield." FAC ¶ 94. Defendants assert that "work performance issues" is a matter of opinion, not fact. True, the phrase "work performance issues" is broad and vague; simply stating that someone had "work performance issues" is more a statement of opinion than fact. But Defendants stated

		that this was the basis for Plaintiff's termination. However broad the phrase "work performance issues" is, it would not include complaints about harsh working conditions or a request for a disability accommodation. Accordingly, if a jury concluded Plaintiff was fired for either of these two reasons, the jury could also conclude that Defendants' statement regarding the reason for Plaintiff termination is false, not merely a matter of opinion. Defendants are to file their Answer to the FAC within ten days. Plaintiff is to give notice of this ruling.
6	Ascentium Capital LLC v. Park 41 Logistices, LLC	Cont. to 10/19
7	Daleh v. NPI Dept Fund II, LP et al	The Motion to Dissolve Preliminary Injunction, filed on 4/27/26 by defendant NPI Debt Fund II, LP ("NPI"), is **GRANTED**. The Motion seeks dissolution of the Preliminary Injunction issued on 12/4/23, under C.C.P. § 529, as Plaintiff Bluestone SoCal Holdings, LLC ("Bluestone") never posted the required bond. Bluestone does not dispute that this is so, and does not oppose the Motion. The Motion is therefore **GRANTED**. Counsel for NPI is to give notice of this ruling.
8	Reichert's Signs, Inc. vs. Icon Owner Pool 1 LA Business Parks, LLC	Defendants/Cross-Defendants Icon Owner Pool 1 LA Business Parks, LLC, and Link Logistics Real Estate, LLC's ("Link" together), unopposed Motion for Leave to File a Cross-Complaint ("Motion") is **GRANTED**. Link moves the court for permission to file a cross-complaint pursuant to Civ. Proc. Code § 428.50(c). Here, Link requests to file a cross-complaint for indemnification related causes of action pertaining to Plaintiff's alleged damages following a structure fire. These causes of action are being pled against parties that have already been identified as defendants in the other pleadings. The proposed cross-complaint arises out of the same occurrence as the facts and events as the complaint filed by plaintiff Reichert's Signs, Inc., and the cross-complaint filed by defendant/cross-complainant ATI Restoration, LLC. (Civ. Proc. Code § 428.10(b)(1).) "[U]nder the governing statutory provisions a defendant is generally authorized to file a cross-complaint against a concurrent tortfeasor for partial indemnity on a comparative fault basis, even when such concurrent tortfeasor has not been named a defendant in the original complaint." (*Am. Motorcycle Assn. v. Superior Ct.* (1978) 20 Cal. 3d 578, 607.) The interests of justice support having the claims of Link be heard and ruled on at the same time as the claims of the other parties. Under permissive cross-complaint code section, Link should be

		permitted to file the permissive cross-complaint. (Civ. Proc. Code § 426.50.) The Motion is **GRANTED**. Link is ordered to file and serve the proposed cross-complaint within five days of the hearing. Responsive pleadings are due pursuant to code. Link to give notice.
9	Vivian v. MHCC, Inc.	Before the Court at present is the continued hearing on the "Motion for Attorney Fees and Costs Pursuant to Code of Civil Procedure § 2033.420, etc." filed on 3/10/26 by Defendant Ohio Security Insurance Company ("Ohio"). The Motion is **GRANTED IN PART.** Under Code of Civil Procedure section 2033.420, a party is entitled to reasonable attorney's fees for having to prove matters at trial which were denied by the adverse party in response to requests for admission (RFAs), unless an exception applies, e.g., the party failing to make the admission had reasonable ground to believe that the party would prevail on the matter. (C.C.P. § 2033.420 (a), (b).) Costs may be awarded when the requesting party proves the matter at trial or on a motion for summary judgment. (*Barnett v. Penske Truck Leasing Co., L.P*. (2001) 90 Cal.App.4th 494, 497-499.) Ohio has shown entitlement to reasonable attorney fees under § 2033.420. As explained in the Court's 6/26/26 Tentative Ruling, Defendant argues it is entitled to attorney's fees for having to prove the truth of the matters denied by Plaintiffs regarding entitlement to benefits under the insurance policy issued by Defendant to Affordable Coastal Glass, Inc. Plaintiffs contend that, at the time of the denials early in this action, they had reasonable grounds for denying the RFAs because they are named additional insureds on the insurance policy. "In evaluating whether a good reason exists for denying a request to admit, a court may properly consider whether at the time the denial was made the party making the denial held a reasonably entertained good faith belief that the party would prevail at trial." (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1276 [internal quotes and citations omitted]; *Grace v. Mansourian* (2015) 240 Cal.App.4th 523, 532 [party's subjective belief alone insufficient, i.e., reasonable ground "means more than a hope or a roll of the dice"].) Plaintiffs Scott Vivian and Pacific Construction Management International, LLC (collectively "Plaintiffs") assert that they believed the policy covered "damaged or stolen property" (Declaration of Jeffrey Arlen ("Arlen Decl."), Ex. 3 at ¶¶ 5-8). But that belief is not reasonable. The plain language of the policy states insurance coverage is for indemnification and duty to defend against third party lawsuits, not for damages to the property resulting from the insured's faulty work on the project. (ROA 207.) Plaintiffs do not state that the insurance policy was unavailable at the time they

		responded to the RFAs. Plaintiffs' position was clearly untenable and unreasonable. Had Plaintiffs' counsel simply read the policy or conducted routine research, Plaintiffs would have realized they could not prevail at trial on the insurance coverage issue. Defendant has thus shown entitlement to reasonable attorney fees. The Court previously continued this hearing to allow supplementation as to the basis for the sum claimed by Ohio on this motion. The Court has now considered the supplementation presented by Ohio as to the particular fees incurred, and the response submitted by Plaintiffs. The hourly rates claimed here seem reasonable in context, as do the amounts of time spent on specific tasks. Plaintiffs have not argued otherwise. However, under C.C.P. § 2033.420(a), only fees and costs reasonably incurred in disproving the RFA responses at issue may be recovered. Under that standard, Ohio may recover for work on its summary judgment motion, but not for other tasks undertaken while that motion was being prepared or was pending. Plaintiffs suggest that the time spent on the summary judgment motion is identified in the invoices based on the use of the "L240" code therein, which amounts to $11,550, and that this sum is thus the most that Ohio should be able to recover here. But the invoices include a number of additional entries reflecting work on that same motion, although bearing other codes, which together reflect an additional $8,867 in fees incurred for summary judgment related work. Therefore, in addition to the $11,550 sum reflecting work coded as "L240," a further $8,867 in fees that were incurred for summary judgment related work may be recovered here. The Court thus finds that Ohio may recover, in total, **$20,237** on this motion, under C.C.P. § 2033.240. Counsel for Ohio is to give notice of this ruling.
10	Ally Bakn Lease Trust v. Mazakyan	O/C
11	Ly vs. General Motors LLC	**<u>Demurrer</u>** Defendant General Motors, LLC's ("Defendant") demurrer to plaintiff David Ly's ("Plaintiff") Complaint is **SUSTAINED**. The court first notes that Plaintiff's opposition briefs to the demurrer and motion to strike were filed and served late. The court will consider them in this instance, but cautions Plaintiff to timely file pleadings in the future or risk the court disregarding them. (Rules of Court, Rule 3.1300(d).) Defendant demurs to cause of action ("COA") no. 3 for Sale of Defective Merchandise Without Disclosing Defects Business & Professions Code §§ 17531 and 17535 based on it lacking sufficient

		facts and being uncertain, ambiguous, and unintelligible. (Civ. Proc. Code § 430.10(e) and (f).) Plaintiff only regurgitated the text of Bus. & Prof. Code §§ 17531 and 17535, without providing any facts to support Defendant's violation of those code sections. Although Plaintiff argues that Bus. & Prof. Code § 17535 remains viable to enjoin Defendant from various bad actions, Plaintiff has not sufficiently pled a COA under Bus. & Prof. Code § 17531, and as the complaint identifies no other Bus. & Prof. Code section(s) which were allegedly violated, there are no grounds for relief under Bus. & Prof. Code § 17535. Plaintiff has not pled sufficient facts and the COA is uncertain. The demurrer is sustained. **<u>Motion to Strike</u>** Defendant's motion to strike punitive damages from the Complaint is **GRANTED**. Defendant moves to strike the prayer for punitive damages pursuant to Civ. Code §§ 435 and 436(a). As pointed out by Defendant, punitive damages are not specifically available under the code sections each COA refer to. (*Troensegaard v. Silvercrest Indus., Inc.* (1985) 175 Cal. App. 3d 218, 228; *Chern v. Bank of Am*. (1976) 15 Cal. 3d 866, 875; *Walsh v. Ford Motor Co*., 627 F. Supp. 1519, 1524 (D.D.C. 1986).) COA Nos. 12-13 are also pled against an unidentified dealer, which has not been added as a party to this action. Even if punitive damages were in theory permitted in any of the COA in the complaint, Plaintiff has not made any allegations of malice, oppression, or fraud under Civ. Code § 3294, nor has Plaintiff pled any facts which support any prong for punitive damages. The motion is granted. Plaintiff is given leave to file an amended complaint within 20 days of written notice of the ruling. Defendant to give notice.
12	Dodson v. Lacitento	O/C
13	Lussier vs. KLMH Enterprises, LLC	Defendants SAL Asset Management, LLC's ("SAL" individually) and Northstar Senior Living, Inc.'s ("Defendants" together with SAL for this ruling) Motion to Stay is **GRANTED**. Defendants request the court stay this action pending the outcome of SAL's appeal of the denial of its motion to compel arbitration. The appeal is currently pending. As the subject arbitration agreement required arbitration under the Federal Arbitration Act ("FAA"), the court proceeds with analysis under the FAA. (ROA 60, Ex. A pp. 24.) " ' " "The 'principal purpose' of the FAA is to 'ensur[e] that private

arbitration agreements are enforced according to their terms.' " [Citation.] When it applies, the FAA preempts any state law rule that " 'stand[s] as an obstacle to the accomplishment of the FAA's objectives.' " ' " (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal. App. 4th 227, 238.) "An appeal, including an interlocutory appeal, "divests the district court of its control over those aspects of the case involved in the appeal." ' " (*Coinbase, Inc. v. Bielski* (2023) 599 U.S. 736, 740.) "Because the question on appeal is whether the case belongs in arbitration or instead in the district court, the entire case is essentially "involved in the appeal." ' " (*Id.*, at 741.) "when a party appeals the denial of a motion to compel arbitration, whether "the litigation may go forward in the district court is precisely what the court of appeals must decide." ' " (*Ibid.*) "[I]t "makes no sense for trial to go forward while the court of appeals cogitates on whether there should be one." [Citation.] In short, *Griggs* dictates that the district court must stay its proceedings while the interlocutory appeal on arbitrability is ongoing." (*Ibid*.)

In making a determination as to whether to stay a matter pending an appeal of a denial of a motion to compel arbitration, courts consider the following factors: 1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits; 2) whether the applicant will be irreparably injured absent a stay; 3) whether issuance of the stay will substantially injure the other parties interested in the proceeding; and 4) where the public interest lies. (*Karla Maree v. Deutsche Lufthansa AG Anthony Castanares et al., No. CV204261MWFMRWX*, 2021 WL 4352912, at *2 (C.D. Cal. June 21, 2021) ("*Maree*").)

Absent a stay, SAL will suffer irreparable harm as it would be forced to incur costs of participating in this court including discovery and motion hearings when SAL might end up being sent to arbitration if the appeal reverses this court's decision. " ' "Generally, monetary expenses incurred in litigation are not considered irreparable harm. However, arbitration is unique in this aspect." [Citation.]. "If a party must undergo the expense of trial before being able to appeal denial of a motion to compel arbitration, the anticipated advantages of arbitration — speed and economy — are lost." ' " (*Maree, supra,* 2021 WL 4352912, at *3.)

Plaintiff Josephine Lussier, by and through her Successor in Interest, Sharon Trimbo's ("Plaintiff") "general assertions of evidence disappearing or witnesses' memories fading are not sufficient to show prejudice. . . delay alone cannot constitute sufficient prejudice [to Plaintiff]." (*Maree, supra,* 2021 WL 4352912, at *4.)

"Finally, with respect to the public interest, there is a strong public policy favoring arbitration, as evidenced by 9 U.S.C. § 16, which provides for interlocutory appeals when a motion to compel arbitration is denied, but not when one is granted. Furthermore, the interests of judicial efficiency and conservation of resources favor a stay. "It does not make sense for this Court to expend its time and energy preparing this case for trial ... only to learn at a later date from the court of appeals that it was not the proper forum to hear the case." ' " (*Maree, supra,* 2021 WL 4352912, at *4.)

		Although SAL has not shown it is likely to prevail on the appeal, the three other factors support a stay in this action at least as to SAL. Plaintiff takes issue that Defendants request a stay as to the entire action without a showing the other defendants are parties to the arbitration agreement. The concern is valid, however, a stay as to solely SAL would result in different potential rulings between the arbitrator and the trial court and would increase discovery and court costs if the appeal is ultimately denied. A stay would aid in preventing multiple overlapping or related motion hearings before this court depending on the outcome of the appeal. While the court previously denied an ex parte application requesting a stay as it would have caused irreparable harm to Plaintiff as a motion for trial preference had already been granted due to Plaintiffs advanced age and health issues (ROA 104), Plaintiff has since passed away and been replaced by a successor. (ROA 219, 240.) Trial preference is no longer necessary. As the majority of the factors support a stay and in the interests of party and judicial efficiency and economy, the court will grant the Motion and stay this action as to all parties pending the outcome of the appeal. A Status Conference Re: Status of Appeal is set for 07/16/27, at 9:30 a.m. in this courtroom. Defendants are directed to notify the court and other parties by way of filed declaration if the Court of Appeal rules on the appeal before that date. The trial setting conference which was scheduled for 07/20/26 is vacated. Defendants to give notice.
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